IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal made under Section 331 of the Code of Criminal Procedure Act No.15 of 1979

Court of Appeal No.
CA/HCC/0179/2019
High Court of Kandy
Case No. HC/322/2006

Devate Gedera Rajarathne

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Nevil Abeyratna, PC with Kaushalya Abeyratne Dias instructed by A. Dayarathne for the Appellant.**
Dishna Warnakula SDSG for the Respondent.

ARGUED ON : **29/09/2026**

DECIDED ON : **04/11/2026**

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JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) along with another person, who was named as the 2nd Accused were indicted in the High Court of Kandy under Section 296 read with Section 32 of the Penal Code for committing the murder of Hapugoda Maithripala on or about 06th November 1999.

In the course of the same transaction, the Appellant was also indicted for voluntarily causing hurt on Devate Gedera Alahakoon, which is an offence punishable under Section 315 of the Penal Code.

Trial commenced before the High Court Judge of Kandy as the Appellant and the other Accused had opted for a non-jury trial. After the conclusion of the prosecution's case, the Learned High Court Judge had called for the defence and the Appellant had made a statement from the dock and the 2nd Accused had given evidence from the witness box.

After considering the evidence presented by both parties, the Learned High Court Judge had convicted the Appellant as charged and sentenced him to

death on the first count. For the second count, the Appellant was sentenced to 03 years rigorous imprisonment. A fine of Rs.10,000/- subject to a default sentence of 6 months rigorous imprisonment, along with a compensation of Rs.50,000/- was also imposed on the Appellant.

The 2nd Accused was acquitted from the murder charge.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. At the time of the argument, he was connected via the zoom platform from prison.

The learned President's Counsel confining to one ground of appeal contended that the evidence of a sole eye witness cannot be believed and his testimonial trustworthiness cannot be relied upon to allow the conviction to stand.

Background of the case

According to PW1, Alahakoon, the incident had happened on the road which is leading to the residence of a person called Lokku Bappa at about 8.00pm on the day of the incident. He had met the deceased on the way to attend the funeral of Punchi Menika of the village.

At that time, they had encountered the Appellant and the 2nd Accused who was acquitted by the High Court Judge. The Appellant had possessed a knife generally used to tap toddy from Kithul trees and the 2nd Accused had possessed a club. PW1 had identified them very clearly with the light emanating from the residences of A. G. Banda and Lokku Bappa.

As the Appellant and the 2nd Accused had assaulted the father of PW1 on the previous day, PW1 had inquired from them why they assaulted his father. At that time, the Appellant had slapped PW1 and the 2nd Accused had assaulted the deceased on his head with the club he had in his possession. As a result, the deceased had fallen on the ground and the Appellant had cut the

deceased by using the knife which was in his possession. Due to fear, PW1 had run towards his grandmother's house however, he had fallen down due to the slipperiness of the floor as a result of rain. Using this opportunity, the Appellant had inflicted cut injuries to PW1's left arm and stomach, using the knife which he was carrying.

PW6, ASP/Amarasinghe who had conducted the investigation, had visited the scene and had recovered a knife first. Afterwards, he had gone in search of the Appellant and recovered a knife from his house, which was not a recovery under Section 27 of the Evidence Ordinance.

According to PW11 Dr. Upendra Sirisena, the JMO who held the post mortem, opined that the death was due to cardio respiratory failure due to shock and haemorrhage due to compound deformed fracture of left temporal bone and damage to the brain over temporal area and also haemorrhage due to damage to left temporal carotid artery due to a heavy blow. The doctor suggested that the death may have occurred almost instantaneously.

The JMO has noted one cut injury on the stomach area of PW1. He opined that this injury could have been caused by a sharp weapon similar to the knife marked P2.

It was further noted that the cut injuries found on the body of the deceased would have been inflicted when the assailant was facing the deceased, while the blow on the head of the deceased could have been dealt to the deceased while he was upright or on the ground.

After the closure of the prosecution's case, the defence was called and the Appellant opted to make a statement from the dock. The second Accused gave evidence from witness box.

The Learned High Court Judge, in his judgement convicted the Appellant as charged and sentenced him to death on count number one and imposed three years rigorous imprisonment on count two with a fine of Rs.10,000/- subject to a default sentence of 06 months rigorous imprisonment.

Additionally, the Appellant was ordered to pay Rs.50,000/- as compensation to PW1 which was subject to a default sentence of 06 months rigorous imprisonment.

The learned Counsel for the Appellant contends that the conviction is wholly unsafe in view of the uncorroborated and unsatisfactory nature of the evidence of the sole eye witness along with the other respective witnesses, led by the prosecution.

The learned President's Counsel for the Appellant argues that PW01's evidence is inconsistent with the medical evidence and clearly contradicts the position of the prosecution. In this case, PW01 is an eye witness. It was the position of the prosecution that he had clearly seen the incident without any disruption on that day.

In the case of **Sumanasena v. The Attorney General** [1999] 3 Sri.L.R 137 held that;

> *"Evidence must not be counted but weighed and the evidence of a single solitary witness if cogent and impressive could be acted upon by a Court of Law"*

In the case of **Chacko Alias Aniyan Kunju & others v. State of Kerala**- [2004] INSC 87 (21st January 2004) held that:

> *"If the evidence is unblemished and beyond all possible criticism and the Court is satisfied that the witness was speaking the truth then on his evidence alone conviction can be maintained".*

In the case of **Madduma Siripala and another v. The Attorney General** CA/125-126/10 decided on 27/10/2017, Justice Thurairaja held that:

> *"With reference to the above-mentioned section, there is no requisite number of witnesses needed to be called to prove a fact. In fact, the evidence of a single witness is sufficient to prove a fact provided the evidence of the witness is uncontradicted, truthful, independent and reliable to the court".*

With reference to the above cited judicial decisions, it is abundantly clear that the trial court can act on the evidence of a single witness whose evidence is truthful and impressive, to come to a correct finding.

The learned President's Counsel for the Appellant, referring to the evidence given by the witnesses called by the prosecution, further argues that the evidence given by PW1 is highly tainted with ambiguity and uncertainty which seriously compromises the culpability of the Appellant in this case.

PW1, in his evidence categorically stated that the fatal blow on the head of the deceased was dealt by the second Accused, with a wooden club that he was carrying at that time. For clarity, the relevant portions of the evidence given by PW1 are re produced below:

<u>Pages 84-85 of the brief.</u>

ප්‍ර : තමා අභිංසකයි, තමාට ගහන්න එපා කීවාම මොනවාද වුනේ?

උ : ගුනසේකර පොල්ලෙන් ගැහුවා.

ප්‍ර : කාටද ගැහුවේ?

උ : මෛත්‍රී පාලට.

ප්‍ර : කොහාටද ගැහුවේ?

උ : ඔලුව පැත්තට ස්වාමිනි.

ප්‍ර : මොන එළියෙන්ද දැක්කේ?

උ : ලයිට් එළිය තිබුනා.

ප්‍ර : මෛත්‍රීපාලට කවුද පොල්ලෙන් ගැහුවේ?

උ : ගුනසේකර.

ප්‍ර : ගුනසේකර පොල්ලෙන් ගැහුවාම මොකද වුනේ?

උ : මෛත්‍රීපාල වැටුනා.

ප්‍ර : එතන මොන වගේ තැනක්ද?

උ : එතන මිදුල තිබුනා.

ප්‍ර : වැටුනාට පස්සේ මොකද වුනේ?

උ : වැටුනාට පස්සේ රාජරත්න අතේ තිබුන පිහියෙන් මෛත්‍රීපාලව කැපුවා.

ප්‍ර : මෛත්‍රීපාලගේ කොහේද කැපුවේ?

උ : කකුල් දෙක තමයි කැපුවේ.

ප්‍ර : ඔබ මොකද කලේ?

උ : මමත් මරයි කියලා මම දිවුවා.

ප්‍ර : කොහාටද දිවුවේ?

උ : අත්තම්මාලාගේ ගෙදරට දිවුවා.

ප්‍ර : අත්තම්මාලාගේ ගෙදර දුවන්න හමුවුනාද?

උ : මම වැටුනා. වැහි ගතිය තිබුනා.

ප්‍ර : ඊටපස්සේ මොකද වුනේ?

උ : මම නැගිටිනකොට පස්සේ ඇද්දා මල් කපන පිහියෙන්.

ප්‍ර : කොතනින්ද ඇද්දේ?

උ : වම් අතේ උඩ බාහුව, උදරයේ වම් පැත්ත කැපුන බව පෙන්වා සිටී.

With this evidence given by PW1, the Learned High Court Judge had acquitted the second Accused and arrived at the conclusion that the Appellant had committed the murder of the deceased. I consider this to be a clear misdirection of the Learned High Court Judge.

In the case of the **Queen v Julis** 65 NLR 585 the court held that:

> *"that, by falsely implicating the 1st accused, the two witnesses gave false evidence on a material point. Applying the maxim falsus in uno, falsus in omnibus (He who speaks falsely on one point will speak falsely upon all), their evidence implicating the 4th and 5th accused should also be rejected. When such evidence is given by witnesses, the question whether other portions of their evidence can be accepted as true should not be resolved in their favour unless there is some compelling reason for doing so".*

Though, PW1 said in the examination in chief that the Appellant had cut the deceased using a knife generally used for tapping Kittul toddy, he could not identify the two knives recovered during the investigation by the police.

In all criminal trials, the burden of proof is always on the shoulder of the prosecution. Accordingly, the prosecution will always bear the weight of proving the guilt of the Accused, beyond a reasonable doubt.

In the case of **Mohamed Nimnaz V. Attorney General** CA/95/94 held:

> *"A criminal case has to be proved beyond reasonable doubt. Although we take serious view in regard to offences in relation to drugs, we are of the view that the prosecutor should not be given a second chance to fill the gaps of badly handled prosecutions…."*

In **Attorney-General v. Rawther** 25 NLR 385, Ennis, J. states thus: [1987} 1 SLR 155

> *"The evidence must establish the guilt of the accused, not his innocence. His innocence is presumed in law, from the start of the case, and his guilt must be established beyond a reasonable doubt".*

In **Miller v. Minister of Pensions** (1947) 2 All E.R. 372 the court held that:

> *"the evidence must reach the same degree of cogency as is required in a criminal case before an accused person is found guilty. That degree is well settled. It need not reach certainty, but it must carry high degree of probability. Proof beyond reasonable doubt does not mean proof beyond the shadow of a doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong against a man as to leave only a remote possibility in his favour which can be dismissed with the sentence, "of course it is possible, but not in the least probable," the case is proved beyond reasonable doubt, but nothing short of that will suffice".*

After the conclusion of the submissions made by the learned President's Counsel for the Appellant, the learned Senior Deputy Solicitor General highlighting the dock statement of the Appellant, contended that this is a fit and proper case to bring down the charge to culpable homicide not amounting to murder as the Appellant had admitted that he also dealt a blow with a door pole on the deceased as the deceased had tried to assault him at that time.

I am unable to agree with the learned SDSG as the eye witness had very clearly said that the second Accused was the person who dealt the fatal blow on the deceased's head. The JMO who held the post mortem of the deceased opined that the death had been caused due to the fatal blow on the head.

Therefore, the above-mentioned inconsistencies have created a doubt regarding the guilt and culpability of the Appellant in this case. Hence, I conclude that the benefit of doubt should be awarded to the Appellant in this case. The Appellant has been in remand since the date of judgment, i.e., from

07.05.2019. I conclude that the Learned High Court Judge has not adequately considered the weak evidence relating to the Appellant's guilt.

Accordingly, I allow the appeal and acquit the Appellant from this case.

The Registrar of this Court is directed to send this judgment to the High Court of Kandy along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree

JUDGE OF THE COURT OF APPEAL